

TAB 31



Board of Education Report

File #: Rep-052-25/26, **Version:** 1
In Control: Division of Instruction

Agenda Date: 9/16/2025

Annual Report of the Los Angeles Unified School District Affiliated Charters Proposition 28 Report: The Arts and Music in Schools Funding Guarantee and Accountability Act Division of Instruction

Brief Description:

(Annual Report of the Los Angeles Unified School District Affiliated Charters Proposition 28 Report: The Arts and Music in Schools Funding Guarantee and Accountability Act) Recommends approval of the 2024-2025 Proposition 28 Arts and Music in Schools Funding Annual Report inclusive of 51 Affiliated Charter Schools in Los Angeles Unified and the revised 2023-24 report for Community Magnet Charter School. Proposition 28: Arts and Music in Schools Funding Annual Report is a compliance requirement for each Local Education Agency (LEA) that provides narrative and quantitative details relevant to visual and performing arts base funding and Prop 28 funding, categorical state funds, which serve to supplement visual and performing arts instruction.

Action Proposed:

- 1) Approve the 2024-2025 Proposition 28 Arts and Music in Schools Funding Annual Report inclusive of 51 Affiliated Charter Schools in Los Angeles Unified and
- 2) Approve the revised 2023-24 report for Community Magnet Charter School.

Background:

On November 8, 2022, California voters approved Proposition 28: The Arts and Music in Schools (AMS) Funding Guarantee and Accountability Act. The measure required the state to establish a new, ongoing program supporting arts instruction in schools beginning in 2023-24 school year. The funding is allocated to school sites based on student enrollment and academic need and, as authorized by the ballot initiative, school sites have three fiscal years to spend each school year's allocation of funds they receive.

The ballot initiative allocates one percent of kindergarten through grade twelve (K-12) portion of the Proposition 98 funding guarantee provided in the prior fiscal year, excluding funding appropriated for the AMS education program. Local Education Agencies (LEAs) with 500 or more students are required to ensure that at least 80 percent of AMS funds are used to employ certificated or classified employees to provide arts education program instruction. The remaining funds must be used for training, supplies, materials, and arts educational partnership programs, with no more than one percent of funds received to be used for an LEA's administrative expenses.

One of the condition of receive Proposition 28 funds is that "a local educational agency shall annually submit an annual board-or body- approved report in a manner determined by the Superintendent, that shall be posted on the local educational agency and department's internet websites and that details the type of arts education programs funded by the program, the number of full-time equivalent teachers, classified personnel, teaching aides, the number of pupils served, and the number of school sites providing arts education programs with those funds."

Background for Revised Report:

An error was discovered in the 2023-24 annual report submitted to the California Department of Education (CDE) by one of the affiliated charter schools, Community Magnet Charter School. The error was a result of a mistake in reporting 1.0 FTE for an elementary itinerant arts teacher instead of .36 FTE. The revised 2023-24 report for Community Magnet Charter School is included with their 2024-25 Annual Report. The revised report continues to meet the requirement to ensure that at least 80 percent of the funds were expended to employ certificated or classified employees to provide arts education program instruction. Prior to the school submitting the revised report to CDE, it must be presented to the Board for approval. All affiliated charter schools will receive additional oversight and training regarding future reports.

Expected Outcomes:

Increased Proposition 28 funding will result in expanded student access to dance, music, theatre, visual and media arts across all grade levels.

Board Options and Consequences:

If the Board of Education does not approve this annual report, Proposition 28 funds may be delayed or withheld for 51 affiliated charter schools in Los Angeles Unified for the 2025-2026 school year.

Policy Implications:

Due to the error in Community Magnet Charter School's Annual Report Proposition 28: The Arts and Music in Schools submission to the state, all affiliated charter schools will receive additional oversight and training regarding future reports.

Budget Impact:

For the 2024-2025 school year, Los Angeles Unified Affiliated Charters received approximately \$5.5 million in new Proposition 28 funding, in addition to the carryover from the 2023-24 entitlement. The annual state budget appropriation is subject to change year to year, depending on the overall Proposition 98 funds available each fiscal year.

Student Impact:

By providing additional funds to support arts education, the District anticipates increased student achievement outcomes and enhanced social emotional development.

Equity Impact:

Component	Score	Score Rational
Recognition	4	Proposition 28 actively recognizes and specifies historical inequities to correct by providing additional funding for arts and music education in all K-12 public schools and allocates a greater proportion of the funds to schools serving more economically disadvantaged students.
Resource Prioritization	3	Proposition 28 prioritizes resources based on student need by allocating a greater portion of funds to schools serving more economically disadvantaged students.

File #: Rep-052-25/26, **Version:** 1
In Control: Division of Instruction

Agenda Date: 9/16/2025

Component	Score	Score Rational
Results	4	Proposition 28 is likely to result in a narrowing of the opportunity gaps and/or achievement gaps for students by providing greater access to arts and music education and program through increased funding targeted to provide programming to economically disadvantaged students.
Total	11	

Issues and Analysis:

Each of the 51 affiliated charter schools must submit their own Proposition 28 Annual report. However, the Los Angeles Unified School District Board of Education must approve the reports.

Attachments:

Proposition 28: Arts and Music in Schools Funding Annual Report for Charter Schools

- To review the 51 affiliated charter school individual plans, please click [here](https://drive.google.com/drive/folders/1uV83NQLmmJOulQqxZ3Iw9n_x2RhuBkG1?usp=sharing)
[<https://drive.google.com/drive/folders/1uV83NQLmmJOulQqxZ3Iw9n_x2RhuBkG1?usp=sharing>](https://drive.google.com/drive/folders/1uV83NQLmmJOulQqxZ3Iw9n_x2RhuBkG1?usp=sharing)

Submitted:

09/04/25

File #: Rep-052-25/26, Version: 1
In Control: Division of Instruction

Agenda Date: 9/16/2025

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


KARLA V. ESTRADA
Deputy Superintendent of Instruction

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:


FRANCES BAEZ
Chief Academic Officer
Division of Instruction

REVIEWED BY:


KURT JOHN
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

Proposition 28: Arts and Music in Schools Funding Annual Report for Affiliated Charters

Fiscal Year 2024-25

District Name: Los Angeles Unified School District – Affiliated Charters

CDS Code: Varies by School

Allocation Year: 2024-25

1. Narrative description of the Prop 28 arts education program(s) funded. (2500 character limit).

Proposition 28 provides increased investments in Arts Education which is critical for academic growth, personal development, social emotional expression, cultural fluency, and creativity. Proposition 28 provided additional investments in arts education at 51 affiliated charter schools in the Los Angeles Unified School District. Additionally, these funds allowed us to provide additional resources to Targeted Student Populations.

Please click on the following link to access each affiliated charter school Proposition 28 Annual Report: https://drive.google.com/drive/folders/1uV83NQLmmJOuLQqxZ3lw9n_x2RhuBkG1

During the 2024-2025 budget development period, school principals received clear guidance regarding Proposition 28 plan development, legislative requirements, and office hours for site specific budgeting assistance. This guidance included that State law requires schools to use at least 80% of funds to employ staff to provide arts instruction. This may include Elementary Arts Itinerants, Secondary Arts Teachers, Teacher Assistants, or Instructional Aides. Principals were also informed that any positions purchased with Proposition 28 funds must have job duties consistent with the respective class description. Finally, principals were informed that the remaining funds may be used for training, supplies, materials, and arts education partner programs.

Proposition 28 funds are important to our school communities because increasing arts learning opportunities and student access to arts instruction can produce significant educational benefits in a variety of areas, including academic engagement and social emotional wellbeing.

2. Number of full-time equivalent teachers (certificated).	Varies by School
3. Number of full-time equivalent personnel (classified).	Varies by School
4. Number of full-time equivalent teaching aides.	Varies by School
5. Number of students served.	Varies by School
6. Number of school sites providing arts education	51

Annual Report Data URL:

https://arts.lausd.org/apps/pages/index.jsp?uREC_ID=4406078&type=d&pREC_ID=2634188

Completed by: Jantré Christian

Title: Administrator

Email: jantre.christian@lausd.net

Telephone: (213) 241-8222